

		time-consuming job of Deputy Director of Administration for the Riverside District Attorney. The court upheld Woolery's choice because either would have been proper, and neither choice would have deceived the voter. However, the court found that Woolery's victory did not shed light on his views as a candidate, but briefly related to one aspect of his work experience. (<i>Id.</i> at p. 1057.) Here, Schneider's preferred designation as educator likely would have deceived the voters into believing she was a certified teacher or some other type of teaching professional, while her correct designation as elementary library media technician accurately reflects her position. Wu's declaration established the Capistrano Unified School District provides a description of Schneider's actual position and educational experience is a high school degree or its equivalent and the only license is a driver's license. Schneider's opposition does not address the amount of fees sought by Wu. Failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566.) The court finds attorney Mark Rosen's hourly rate of \$500 and his 17.8 hours of work reasonable. Petitioner to give notice.
9	D&S Washout Systems, Inc. vs. Lennar Homes of California LLC 30-2024-01404442-CU-BC-CJC	Application for Writ of Attachment Continued to 1/24/2025 at parties' request.
10	National Funding, Inc. vs. The Meat Shop of Indianapolis Inc. 30-2024-01375055-CU-BC-CJC	Plaintiff's Motion for Summary Judgment, or in the Alternative, Summary Adjudication Plaintiff National Funding, Inc.'s unopposed motion for summary judgment against Defendants The Meat Shop of Indianapolis Inc. and Larry Miller Jr. is GRANTED. <u>First Cause of Action for Breach of Contract against The Meat Shop of Indianapolis, Inc. ("Borrower"):</u> "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff." (<i>Richman v. Hartley</i> (2014) 224 Cal.App.4th 1182, 1186.)

Plaintiff and Borrower executed a Business Loan Agreement, agreement number FWC685761 ("Loan Agreement"), whereby Borrower received an original loan from Plaintiff in the principal amount of \$110,000.00. (Plaintiff's Undisputed Material Fact ("UMF") No. 1.) Plaintiff deposited all monies required under the terms of the Loan Agreement into the bank account for Borrower and has fully performed its obligations under the Loan Agreement. (UMF Nos. 10, 11.) Borrower breached the Loan Agreement on 8-31-23, by failing to make its daily payment, as required under the terms of the Loan Agreement. (UMF No. 5.) Upon Borrower's breach, Plaintiff elected to exercise its rights and remedies under the Loan Agreement and declare a breach, making the entire outstanding balance of \$96,426.36 due and payable. (UMF No. 6.) Plaintiff has demanded payment from the Borrower, but the Borrower has failed to pay the amounts due under the Loan Agreement. (UMF Nos. 7, 8.) As a result, Plaintiff has been damaged in the amount still due and outstanding as well as the attorneys' fees and costs incurred in collecting under the Loan Agreement.

Plaintiff has therefore met its initial burden to produce admissible evidence on each element of the breach of contract cause of action. The burden shifts to Borrower to show that a triable issue of material fact exists. Borrower has not opposed the Motion.

Second Cause of Action for Breach of Guaranty against Larry Miller Jr. ("Guarantor"):

The elements to a claim for breach of guaranty are: (1) a guarantor guaranteed payment of indebtedness of a primary obligor, (2) the primary obligor defaulted, (3) notification was given to the guarantor as to the primary obligor's default, (4) there was nonpayment of the debt by the guarantor, and (5) damages. (*Torrey Pines Bank v. Superior Court* (1989) 216 Cal.App.3d 813, 819.)

Guarantor guaranteed the indebtedness of Borrower under the Loan Agreement. (UMF Nos. 3, 4.) Borrower defaulted on the Loan on 8-31-23 by failing to timely make its daily payment, as required under the terms of the Loan Agreement. (UMF No. 5.) Plaintiff has demanded payment from both Borrower and Guarantor for the amount due under the Loan Agreement and Guaranty. (UMF No. 7.) Guarantor has failed to pay the amounts due under the Loan Agreement and Guaranty. (UMF No. 8.) As a result, Plaintiff has been damaged in the amount still due and outstanding as well as the attorneys' fees and costs incurred in collecting under the Loan Agreement.

Plaintiff has met its initial burden to produce admissible evidence on each element of a cause of action for breach of guaranty. The

		burden shifts to Guarantor to show that a triable issue of material facts exists. Guarantor has not opposed the Motion. Plaintiff to give notice and to submit a proposed judgment within 5 days.
11	Mitchell vs. Sun West Mortgage Company, Inc. 30-2023-01329108-CU-WT-CJC	Defendant's Motion for Summary Judgment Defendant, Sun West Mortgage Company, Inc.'s motion for summary judgment or, in the alternative, summary adjudication, is DENIED. All objections are overruled as immaterial to the court's determination and preserved for appeal. (See <i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 526.) Defendant's requests for judicial notice 1-4 are granted, and 5 is denied. <u>First Cause of Action – Labor Code § 2802</u> There exists a triable issue of material fact as to whether plaintiff resided in California and/or performed a majority of work in California, and therefore as to whether he can avail himself of the protections of Labor Code section 2802. <u>Second Cause of Action – Retaliation in Violation of Labor Code § 1102.5</u> There exists a triable issue of material fact as to whether the alleged retaliatory acts took place in California or outside of California. <u>Third Cause of Action – Wrongful Termination in Violation of Public Policy – Retaliation in Violation of FEHA</u> There exists a triable issue of material fact as to whether the alleged retaliatory acts took place in California or outside of California. <u>Adjudication of Issue 1</u> A party may move for summary adjudication of one or more cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) The issue sought to be adjudicated does not fall into one of these categories. Even if it did, there exists a triable issue of material fact as to whether plaintiff resided in California and/or was a California resident at the time of the alleged harassment and termination. Plaintiff to give notice.